Provincial Government of Surigao del Norte

Provincial Disaster Risk Reduction and Management Office (PDRRMO)

Abante Surigao Search and Rescue Team (ASSERT)

TERMS AND CONDITIONS

EMERGENCY RESPONSE, PATIENT CARE & TRANSPORT SERVICES

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Preamble

This document sets forth the Terms and Conditions governing the provision of emergency response, pre-hospital emergency medical care, first aid, rescue operations, and patient transport services rendered by the **Abante Surigao Search and Rescue Team (ASSERT)**, the official First Response Team of the **Provincial Disaster Risk Reduction and Management Office (PDRRMO)** of the **Province of Surigao del Norte**, Republic of the Philippines.

ASSERT is organized and operates under the authority of *Republic Act No. 10121* (Philippine Disaster Risk Reduction and Management Act of 2010) and its Implementing Rules and Regulations, *Executive Order No. 82, s. 2012*, and all other applicable national and local laws, ordinances, and regulations pertaining to disaster risk reduction, emergency medical services, and public safety.

The ambulance and patient transport services provided by ASSERT are further governed by the national standards established under *DOH Administrative Order No. 2010-0003* (National Policy on Ambulance Use and Services), issued by the Department of Health on January 7, 2010, which provides guidance on the proper design, equipping, staffing, and utilization of ambulance services to protect and save the lives of patients and to enable medical care providers to properly perform their corresponding duties.

All patients, guardians, next-of-kin, and other persons who receive, request, or benefit from ASSERT's services are bound by these Terms and Conditions upon engagement of services, whether or not a written acknowledgment is signed.

Article I — Definitions

For purposes of this document, the following terms shall have the meanings ascribed below, consistent with *DOH AO No. 2010-0003* and applicable Philippine law:

1. **"ASSERT"** refers to the Abante Surigao Search and Rescue Team, the emergency response unit of PDRRMO Surigao del Norte, including all its duly authorized officers, personnel, volunteers, and agents.
2. **"PDRRMO"** refers to the Provincial Disaster Risk Reduction and Management Office of the Province of Surigao del Norte.
3. **"Patient"** refers to any individual who receives or is the subject of emergency medical services, first aid, rescue, or transport by ASSERT personnel.
4. **"Guardian"** refers to the parent, legal guardian, next-of-kin, or any person legally authorized to make decisions on behalf of the Patient.
5. **"Services"** refers to all emergency response, rescue, pre-hospital emergency medical care, first aid, patient assessment, treatment, stabilization, and transport services rendered by ASSERT.
6. **"e-Street Form"** refers to the Electronic Scene Treatment Report and Emergency Evaluation Tool, the official patient care record and documentation form used by ASSERT.
7. **"AMA"** refers to "Against Medical Advice" — a situation where the Patient or Guardian refuses recommended treatment or transport.
8. **"Receiving Facility"** refers to any hospital, clinic, or medical facility to which a Patient is transported for definitive care.
9. **"Ambulance"** refers to a vehicle designed and equipped for transporting sick or injured patients to, from, and between places of treatment, affording safety and comfort to the patients and avoiding aggravation of illness or injury, as defined under *DOH AO No. 2010-0003, Section IV(A)*.
10. **"Medical Care Providers"** refers to doctors, nurses, EMTs, Medical First Responders, and paramedical personnel performing pre- and post-hospital care to sick and/or injured persons, as defined under *DOH AO No. 2010-0003, Section IV(F)*.

11. "**Ambulance Driver**" refers to a person who possesses a valid professional driver's license, who has undergone Basic Life Support Training, and who has been issued an appropriate identification card, as defined under *DOH AO No. 2010-0003, Section IV(B)*.
12. "**Emergency**" refers to an actual threat to an individual's life or to public health and safety which needs immediate response.
13. "**Disaster**" refers to an actual threat to public health and safety where the local government and the emergency services are unable to meet the immediate needs of the community.

Article II — Nature and Scope of Services

Section 1. Emergency Response Services

ASSERT provides the following services within the Province of Surigao del Norte and, when authorized, in adjacent jurisdictions under mutual aid agreements:

- Emergency medical response and pre-hospital care
- Basic and advanced first aid
- Search and rescue operations (land, water, and urban)
- Patient assessment, stabilization, and monitoring
- Emergency patient transport via ambulance
- Mass casualty incident (MCI) response and triage
- Disaster response and relief operations
- Inter-facility patient transfer (when authorized)

Section 2. Pre-Hospital Care Standards

All pre-hospital emergency medical care is rendered in accordance with the training level and certification of the responding personnel, which may include but is not limited to: Medical First Responder (MFR), Emergency Medical Technician (EMT), and other certifications recognized by the Department of Health (DOH) and the Philippine Red Cross. Treatment protocols follow nationally accepted pre-hospital care guidelines and standing medical orders.

Section 3. Ambulance Service Standards

Pursuant to *DOH Administrative Order No. 2010-0003*, ASSERT's ambulance service adheres to the following national policy standards:

a. Every emergency or disaster victim shall be transported safely to and from the nearest appropriate hospital for definitive care;
b. The ambulance shall be used to transport patients — especially the critically ill, seriously ill, and/or injured;
c. The ambulance may also be used to transport medical care providers, blood, and emergency supplies;
d. The ambulance shall **not** be used for purposes other than those stated above, and shall **not** be used to transport cadavers;
e. The safety and protection of the Patient as well as the medical care providers shall be of primary consideration;
f. Ambulance personnel are appropriately trained and competent;
g. Ambulances are equipped according to their type and classification, regularly maintained, and properly cleaned, sanitized, and decontaminated before and after each patient transport;
h. Ambulances are properly marked, identified, and only licensed ambulance service providers shall use the word "AMBULANCE" on their vehicles.

Section 4. Limitations of Services

ASSERT services are limited to **pre-hospital and emergency care**. ASSERT does not provide definitive medical treatment, surgical intervention, prescription of medications (except under standing medical orders), or ongoing medical care. Patients requiring definitive care shall be transported to the nearest appropriate Receiving Facility.

Article III — Best Effort and Good Faith

Section 1. Standard of Care

All Services are rendered on a **best-effort and good-faith basis**. ASSERT personnel shall exercise reasonable care, skill, and diligence consistent with their level of training, certification, and the conditions prevailing at the emergency scene. Emergency response inherently involves unpredictable and hazardous conditions, and outcomes cannot be guaranteed.

Section 2. Good Samaritan Protection

ASSERT personnel and the PDRRMO Surigao del Norte are afforded protection under *Republic Act No. 10871* (Good Samaritan Act of the Philippines), which provides that any person who, in good faith, renders emergency care at the scene of an emergency shall not be held liable for any civil damages arising from acts or omissions performed in good faith. This protection extends to all ASSERT personnel acting within the scope of their training and authority.

Section 3. No Guarantee of Outcome

The Patient and/or Guardian acknowledge and understand that emergency medical services are rendered under field conditions that may be significantly different from a controlled hospital environment. ASSERT does not and cannot guarantee any specific medical outcome, and the provision of Services does not create a physician-patient relationship between the Patient and ASSERT personnel.

> *ASSERT and the PDRRMO Surigao del Norte shall not be held liable for outcomes arising from emergency interventions performed in good faith and within the scope of the responders' competence, training, and authority.*

Article IV — Consent to Treatment and Transport

Section 1. Express Consent

By signing the e-Street Form or verbally consenting to Services, the Patient (or Guardian) expressly authorizes ASSERT personnel to perform emergency medical assessment, treatment, first aid, and/or transport as deemed necessary by the responding team.

Section 2. Implied Consent

In cases where the Patient is **unconscious, incapacitated, mentally incompetent, a minor without a guardian present, or otherwise unable to provide express consent**, consent to emergency treatment and transport shall be implied under the doctrine of implied consent, in accordance with Philippine law and accepted emergency medical practice. ASSERT personnel shall render appropriate care to preserve life, prevent further injury, and stabilize the Patient.

Section 3. Scope of Consent

The Patient/Guardian consents to the following:

a. Physical assessment and examination as necessary for emergency care;
b. Application of first aid measures including but not limited to wound care, splinting, immobilization, CPR, oxygen administration, and use of automated external defibrillator (AED);
c. Administration of medications under standing medical orders;
d. Intravenous (IV) access and fluid administration when indicated;
e. Transport to the nearest appropriate Receiving Facility via ambulance or other available means;
f. Documentation of all findings, treatments, and patient information in the e-Street Form;
g. Sharing of patient information with the Receiving Facility for continuity of care;
h. Photography or digital documentation of injuries for medical records, when clinically relevant.

Article V — Refusal of Treatment or Transport

Section 1. Right to Refuse

A competent adult Patient (or authorized Guardian) has the right to refuse any or all offered Services, in whole or in part. However, the Patient/Guardian must be fully informed of the potential consequences of such refusal before it is accepted.

Section 2. Informed Refusal Process

When a Patient or Guardian refuses Services, ASSERT personnel shall:

a. Clearly explain the nature and purpose of the recommended treatment or transport;
b. Explain, in plain language understood by the Patient/Guardian, the potential risks, complications, and consequences of refusal — including but not limited to **worsening of condition, permanent disability, or death**;
c. Offer alternative recommendations when available;
d. Document the refusal, the explanation given, and the Patient/Guardian's acknowledgment on the e-Street Form;
e. Request the Patient/Guardian to sign the e-Street Form acknowledging the refusal.

Section 3. Release and Hold Harmless

By refusing Services, the Patient/Guardian **voluntarily, knowingly, and against medical advice (AMA)** releases and holds harmless ASSERT, the PDRRMO Surigao del Norte, the Provincial Government of Surigao del Norte, and all their officers, personnel, volunteers, agents, and assigns from any and all claims, demands, liabilities, damages, costs, expenses, or causes of action — whether in law or in equity — arising from or related to such refusal, including but not limited to any deterioration of the Patient's condition, injury, disability, or death that may result therefrom.

Section 4. Refusal by Minors

A minor (under 18 years of age) may not refuse Services on their own behalf. Only a parent, legal guardian, or authorized representative may refuse Services for a minor. In the absence of a guardian and where delay would endanger the minor's life, ASSERT personnel shall render care under implied consent.

Article VI — Affidavit and Sworn Statement

Section 1. e-Street Form as Affidavit

When a Patient or Guardian refuses treatment or transport, the completed and signed e-Street Form shall constitute a **sworn statement and affidavit** attesting to the following:

a. Emergency medical services, first aid, and/or patient transport were offered and made available to the Patient;
b. The nature of the Patient's condition and the recommended Services were explained;
c. The risks, complications, and potential consequences of refusal — including worsening of condition, permanent disability, or death — were explained in a language and manner understood by the Patient/Guardian;
d. The refusal was made **freely, voluntarily, and without coercion, duress, or undue influence**;
e. The Patient/Guardian assumes full and complete responsibility for all consequences resulting from the refusal.

Section 2. Evidentiary Value

The e-Street Form, whether in digital or printed format, may be presented and used as evidence in any administrative, civil, criminal, or other legal proceeding related to the incident, the Services rendered, or the refusal thereof. The electronic signature and digital timestamp recorded in the PDRRMO Management Information System (PDRRMO-MIS) shall be considered as authentic evidence of the Patient/Guardian's acknowledgment.

Article VII — Ambulance Services and Patient Transport

Section 1. Governing Policy

All ambulance and patient transport services rendered by ASSERT are governed by *DOH Administrative Order No. 2010-0003* (National Policy on Ambulance Use and Services), *Republic Act No. 10121*, and applicable local ordinances of the Province of Surigao del Norte. As stated in DOH AO No. 2010-0003: "*Ambulance service is one of the vital health services for the delivery of pre- and post-hospital care to a sick patient or to an injured patient resulting from an emergency or a disaster.*"

Section 2. Scope of Ambulance Service

In accordance with *DOH AO No. 2010-0003, Sections I and V*, ASSERT's ambulance service encompasses:

a. Transporting the Patient from the incident site to the emergency room of the Receiving Facility for definitive care;
b. Transferring the Patient to another hospital for further diagnostic and treatment purposes;
c. Rendering emergency medical care and life support to sustain the stability of the Patient in transit to and from the hospital;
d. Transporting medical care providers, blood, and emergency supplies when necessary.

Section 3. Transport Decision

The decision to transport a Patient and the choice of Receiving Facility shall be made by the senior ASSERT responder on scene, taking into consideration the Patient's condition, the severity of injury or illness, the capabilities of available facilities, travel time, and prevailing conditions. Pursuant to DOH AO No. 2010-0003, Section V(A), every emergency or disaster victim shall be transported safely to and from the **nearest appropriate hospital** for definitive care.

Section 4. Ambulance Standards and Equipment

All ASSERT ambulances comply with the standards prescribed by *DOH AO No. 2010-0003, Section V(I-J)*:

a. Ambulances are properly marked and identified in accordance with DOH guidelines;

b. Ambulances are equipped according to their type and classification level;

c. Ambulances are regularly maintained and are always properly cleaned, sanitized, and decontaminated before and after each patient and medical care provider transport;

d. Ambulances are designed to comfortably accommodate a recumbent sick or injured patient and allow easy movement of medical care providers for continuous care;

e. The safety and protection of the Patient as well as the medical care providers shall be of primary consideration at all times.

Section 5. Ambulance Personnel

In compliance with *DOH AO No. 2010-0003, Sections IV and V(J)*, ASSERT ambulance operations are staffed by:

a. **Ambulance Drivers** who possess valid professional driver's licenses and have undergone Basic Life Support Training;

b. **Medical Care Providers** — trained Medical First Responders (MFRs), Emergency Medical Technicians (EMTs), nurses, or physicians who provide pre-hospital care during transport;

c. All ambulance personnel undergo continuous training as required by DOH standards for ambulance service providers.

Section 6. Prohibited Uses of Ambulance

In strict compliance with *DOH AO No. 2010-0003, Sections V(D) and V(E)*:

a. No ASSERT ambulance shall be used for purposes other than emergency medical response, patient transport, transfer of medical personnel, or transport of blood and emergency supplies;

b. No ASSERT ambulance shall be used to transport cadavers;

c. Any violation of these prohibitions shall be subject to administrative sanctions in accordance with DOH regulations and PDRRMO internal policies.

Section 7. Transport Safety and Patient Care in Transit

During transport, the Patient shall be secured on an appropriate patient-carrying device (stretcher, spine board, scoop stretcher, etc.) and continuously monitored by at least one qualified medical care provider. The ambulance shall operate in accordance with all applicable traffic laws and regulations, utilizing emergency warning devices (lights and sirens) only when clinically justified. Vital signs shall be monitored and documented at regular intervals throughout transport.

Section 8. Patient Handover

Upon arrival at the Receiving Facility, ASSERT personnel shall provide a complete verbal and written handover to the receiving medical staff, including the Patient's condition, vital signs, treatments rendered, and any changes observed during transport. A copy of the e-Street Form shall be provided to the Receiving Facility for continuity of care.

Section 9. Accompanying Persons

ASSERT may allow one (1) accompanying person (family member or guardian) in the ambulance during transport, provided that the presence of such person does not interfere with patient care or compromise safety. The decision to allow an accompanying person rests with the senior responder on scene.

Article VIII — Confidentiality and Data Privacy

Section 1. Data Protection

All personal information, medical data, and records collected, processed, and stored in connection with the Services are treated as **strictly confidential** and are protected under *Republic Act No. 10173* (Data Privacy Act of 2012) and its Implementing Rules and Regulations.

Section 2. Authorized Use

Patient information shall be used solely for the following purposes:

- Emergency medical documentation and patient care
- Handover to the Receiving Facility for continuity of care
- Official incident reporting and statistical analysis by the PDRRMO
- Compliance with legal or regulatory requirements
- Quality assurance and continuous quality improvement (CQI) of emergency and ambulance services, as mandated by *DOH AO No. 2010-0003, Section VI(A)(1)(c)*
- Training and education (with personal identifiers removed)

Section 3. Prohibition on Unauthorized Disclosure

Unauthorized access, disclosure, sharing, publication, or misuse of patient information by any ASSERT personnel or third party is **strictly prohibited** and shall be subject to administrative, civil, and criminal penalties under the Data Privacy Act and other applicable laws.

Section 4. Data Retention

Patient records and e-Street Forms shall be retained in the PDRRMO-MIS for a period consistent with applicable government record retention policies. Patients may request access to their records by submitting a written request to the PDRRMO.

Article IX — Liability and Indemnification

Section 1. Limitation of Liability

To the fullest extent permitted by law, ASSERT, the PDRRMO, the Provincial Government of Surigao del Norte, and their respective officers, employees, volunteers, and agents shall not be liable for any direct, indirect, incidental, consequential, or special damages arising from or related to the Services rendered, except in cases of **gross negligence or willful misconduct**.

Section 2. Indemnification

The Patient and/or Guardian agree to indemnify, defend, and hold harmless ASSERT, the PDRRMO, the Provincial Government of Surigao del Norte, and all their officers, personnel, volunteers, and agents from and against any and all claims, actions, damages, losses, costs, and expenses (including attorney's fees) arising from:

a. The Patient's or Guardian's refusal of recommended Services;
b. False, misleading, or incomplete information provided by the Patient or Guardian;
c. The Patient's or Guardian's non-compliance with instructions or recommendations given by ASSERT personnel;
d. Any act or omission of the Patient or Guardian that contributes to the Patient's injury or harm.

Section 3. Insurance

In accordance with *DOH AO No. 2010-0003, Section V(N)*, ASSERT medical care providers and ambulance drivers shall preferably be covered by appropriate additional insurance. The Province of Surigao del Norte endeavors to provide adequate insurance coverage for all ASSERT personnel in the course of their duties.

Section 4. Force Majeure

ASSERT shall not be liable for any failure or delay in rendering Services caused by circumstances beyond its reasonable control, including but not limited to: natural disasters, armed conflict, civil unrest, road blockages, equipment failure, adverse weather conditions, or other force majeure events.

Article X — Regulatory Compliance

Section 1. DOH Standards

ASSERT complies with all DOH national policies, standards, and guidelines for ambulance use and services as required by *DOH AO No. 2010-0003, Sections V and VI*. ASSERT develops and maintains standard operating procedures for ambulance service, ensures continuous training of all personnel involved in ambulance service, and ensures regular maintenance of all ambulances.

Section 2. Coordination with Government Agencies

In accordance with the implementing mechanisms of *DOH AO No. 2010-0003, Section VI*, ASSERT and the PDRRMO coordinate with the following agencies in the delivery of ambulance and emergency services:

- **Department of Health (DOH)** — standards, licensing, capability building, and continuous quality improvement;
- **Philippine Health Insurance Corporation (PhilHealth)** — reimbursable ambulance service packages;
- **Land Transportation Office (LTO)** — ambulance registration and database;
- **Philippine National Police (PNP) / Highway Patrol Group** — traffic assistance, roadway clearance, and monitoring of ambulance use;
- **Philippine National Red Cross (PNRC)** — training, standard operating procedures, and networking support;
- **Local Government Units (LGUs)** — compliance with DOH standards and support for local hospital SOPs;
- **Bureau of Fire Protection (BFP)** — coordinated emergency response;
- **Armed Forces of the Philippines (AFP)** — support for land-to-air or sea transfer operations.

Section 3. Local Government Compliance

Pursuant to the memoranda of agreement between the DILG and DOH, and between the Provincial Government of Surigao del Norte and PDRRMO, all ambulance and emergency response services comply with DOH national policies and support the corresponding standard operating procedures developed by local hospitals and health facilities.

Article XI — Complaints and Grievances

Any complaints, concerns, or grievances regarding the Services rendered by ASSERT may be directed to:

Provincial Disaster Risk Reduction and Management Office (PDRRMO)
Provincial Capitol Complex, Surigao City
Province of Surigao del Norte
Email: pdrrmo.surgaodelnorte@gmail.com

Complaints shall be reviewed and addressed in accordance with applicable government procedures and DOH quality standards. ASSERT is committed to continuous quality improvement of its emergency response and ambulance services as mandated by *DOH AO No. 2010-0003*.

Article XII — Document Authenticity and Integrity

The e-Street Form is an official document of the PDRRMO Surigao del Norte, generated and maintained through the PDRRMO Management Information System (PDRRMO-MIS). Each form is assigned a unique incident reference number and barcode for identification, verification, and audit trail purposes.

Any **alteration, falsification, forgery, or unauthorized reproduction** of this document or any e-Street Form is a criminal offense punishable under the *Revised Penal Code of the Philippines*, *Republic Act No. 10175* (Cybercrime Prevention Act of 2012), and other applicable laws.

Article XIII — Amendments and Revisions

The PDRRMO Surigao del Norte reserves the right to amend, revise, or update these Terms and Conditions at any time, with or without prior notice, to reflect changes in law, policy, operational procedures, or organizational structure. The most current version shall be available through the PDRRMO-MIS and shall supersede all prior versions.

Article XIV — Governing Law and Jurisdiction

These Terms and Conditions shall be governed by and construed in accordance with the laws of the Republic of the Philippines, including but not limited to *Republic Act No. 10121*, *Republic Act No. 10871*, *Republic Act No. 10173*, and *DOH Administrative Order No. 2010-0003*. Any dispute arising from or in connection with these Terms and Conditions or the Services rendered shall be subject to the exclusive jurisdiction of the courts of Surigao del Norte.

Article XV — Separability Clause

If any provision of these Terms and Conditions is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such invalidity, illegality, or unenforceability shall not affect the remaining provisions, which shall continue in full force and effect.

Article XVI — Effectivity

These Terms and Conditions are effective as of **January 1, 2025** and shall remain in force until amended or revoked by the PDRRMO Surigao del Norte. These Terms and Conditions apply to all Services rendered by ASSERT from the effective date forward.

Schedule of Legal References

The following laws, regulations, and administrative orders are referenced in and govern these Terms and Conditions:

1. **Republic Act No. 10121** — Philippine Disaster Risk Reduction and Management Act of 2010
2. **Executive Order No. 82, s. 2012** — Strengthening DRRM at subnational levels
3. **DOH Administrative Order No. 2010-0003** — National Policy on Ambulance Use and Services (January 7, 2010), signed by Secretary Francisco T. Duque III, MD, MSc
4. **Republic Act No. 10871** — Good Samaritan Act of the Philippines
5. **Republic Act No. 10173** — Data Privacy Act of 2012
6. **Republic Act No. 10175** — Cybercrime Prevention Act of 2012
7. **Revised Penal Code of the Philippines** — Act No. 3815

This document constitutes the complete Terms and Conditions governing the emergency response, patient care, ambulance, and transport services of the Abante Surigao Search and Rescue Team (ASSERT) under the PDRRMO Surigao del Norte. By receiving Services from ASSERT, all parties acknowledge they are bound by the terms herein.

Provincial Disaster Risk Reduction and Management Office — Province of Surigao del Norte
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